

# **Thomas Tryon v. County of Calaveras, et al.**

**19CV44275**

## **RULING ON PETITION FOR WRIT OF MANDATE**

Petitioner Thomas Tryon prays the Court issue a peremptory writ of mandate ordering respondent County of Calaveras (County) and its Board of Supervisors (Board, and collectively Respondents) to: “(a) vacate and set aside its denial of the administrative appeal of the Planning Director’s determination that the [Real Party in Interest] Angels Gun Club’s [hereinafter “Real Party”] use constitutes a legal non-conforming use; [and] (b) direct the [Board] to grant the appeal on the grounds that the Angels Gun Club’s activities on [the subject parcels of real property] have expanded and [therefore] no longer constitute a legal non-conforming use...” (Second Amended Petition (SAP) at 8:22-27.)

“Administrative mandamus under section 1094.5 is appropriate to inquire ‘into the validity of any final administrative order or decision made as the result of a proceeding in which by law a hearing is required to be given, evidence is required to be taken, and discretion in the determination of facts is vested in the inferior tribunal. . .’ (Code Civ. Proc., § 1094.5, subd. (a).) “In regard to a petition for writ of [administrative] mandate, we determine ‘whether the respondent has proceeded without, or in excess of, jurisdiction; whether there was a fair trial; and whether there was any prejudicial abuse of discretion.’ [Citation.] ‘Abuse of discretion is established if the respondent has not proceeded in the manner required by law, the order or decision is not supported by the findings, or the findings are not supported by the evidence.’” (*Doe v. Regents of the University of California* (2016) 5 Cal.App.5th 1055, 1072 (*Doe v. Regents of U.C.*), quoting Code Civ. Proc. §1094.5, subd. (b).)

Petitioner does not expressly assert which branch of the doctrine he claims Respondent violated. However, Petitioner’s arguments appear consistent exclusively to a contention that the Board abused its discretion because its findings were not supported by the evidence. (See, *e.g.*, SAP at 1:23-28; see also Support Memo at 6:11-16, 15:14-18.)

The Court does not find allegations in the SAP that would support a finding that a fundamental vested right of Petitioner’s is at issue. (See *Cadiz Land Co., Inc. v. Rail Cycle, L.P.* (2000) 83 Cal.App.4th 74, 111 [“[t]he courts have rarely upheld the application of the independent judgment test to land use decisions”].) For this reason, the Court reviews whether the Board’s determination is supported by substantial evidence in the light of the entire record. (See *Strumsky v. San Diego County Employees Retirement Assn.* (1974) 11 Cal.3d 28, 32.) Petitioner bears the burden of proving that substantial evidence does not support the Board’s evidentiary findings. (See *Young v. City of Coronado* (2017) 10 Cal.App.5th 408, 419 [“[t]he petitioner in an administrative mandamus proceeding has the burden of proving that the agency’s

decision was invalid and should be set aside, because it is presumed that the agency regularly performed its official duty”].)

The parties appear to agree that the manner in which Real Party uses its real property does not conform with the County’s current zoning regulations. However, in response to a request by Petitioner, the County’s Planning Director (Director) reviewed the matter, and on or about December 19, 2018, based on specific findings, determined that Real Party was engaged in a “legal non-conforming use pursuant to Sections 17.04.010 and 17.92.010 [of the Calaveras County, California Municipal Code]...” based on historic use of the property. (See Administrative Record at 0001-5 (AR).) Following appeal by Petitioner, the County’s Planning Commission upheld the Director’s determination. (AR 0302-307.) Following a subsequent appeal by Petitioner, the Board upheld the Director’s determination. (AR 0909-910.)

Through the SAP, Petitioner contends that the Board’s determination is not supported by the evidence and that, rather, Real Party’s non-conforming use has been rendered *illegal* because Real Party has: (1) constructed improvements and/or expanded structures and/or buildings associated with the historic use; and (2) Real Party has expanded the use itself beyond historic levels. (See, *e.g.*, FAVP at 1:23-26, 5:27-6:6, 7:22-26, 8:8-13.)

As to the former, as stated in the Planning Commission Staff Report prepared in preparation for hearing on Petitioner’s appeal, the Director found that while certain improvements had been made to the property, they did not constitute an impermissible expansion of Real Party’s use, such that the use had become illegal in its non-conformance. (See AR 0026, *et seq.*):

The critical provisions are 17.04.0208 and 17.92.020. The first provision clearly states that no use shall be altered or enlarged unless it is clearly consistent with the requirements of the zone in which it is located. The latter provision, however, describes what is considered enlargement. It states that ‘any existing building’ shall not be ‘enlarged, extended, reconstructed, structurally altered or reoccupied’ without approval by the Planning Commission. The Planning Director determined that none of those actions occurred to any building. Additionally, although not expressly stated in the code, those same standards should apply to uses that occur outside of building. The Planning Director found that the same applied to the use. Improvements were made to the facility over time, but it did not increase the use beyond what was occurring or could occur under the pre-existing facilities. In viewing the totality of the improvements that were made and maintenance done on the site, it was not considered to be an expansion. The aerial imagery provided in Attachment shows the progression from 1998 to 2018 of the gun club property. The 1998 image is the earliest to which the Planning Department has access.

An increase in activity or participation constitutes an expansion

The second argument presented by the appellant is that an increase in days and participants should be considered an expansion of the use. Staff disagrees. There was no previous limitation on the gun club and although the club chose to operate only

on certain days previously, the right to utilize the facility was not limited to those days. Similarly, the fact that participation in team completion increased between 2011 and 2012 did not constitute an expansion. There was, again, no limit under the prior code to the number of shooters, events, or teams that could use the facility. An analogy would be that legal, nonconforming business would have to limit the number of customers it serves to that number that it served when it became nonconforming. (AR 0027-28, emphasis in original.)

Respondent and Real Party provide the Court with additional details regarding the analysis conducted by the Director and presented to and relied upon by the Board in upholding his determinations. (See Real Party's Opposition at 11:3-12:9 (RP Opposition), Respondent's Opposition at 8:26-10:10, 11:14-12:12 (Resp. Opposition), and portions of the administrative record cited therein.) In light of this evidence, the Court finds that Petitioner fails to carry his burden of showing that the Board's determination is not supported by substantial evidence.

Again, it does not appear, from either the allegations in the SAP or the arguments presented in Petitioner's Support Memorandum, that Petition asserts that the Board's determination is not supported by the findings. However, Petitioner's Reply Memorandum contains a significant discussion on point. The Court notes that Petitioner's failure to clearly raise the issue through his Petition or his opening brief may violate Respondent and Real Party's due process rights to notice. "[T]he court may disregard arguments or grounds for demurrer first raised in a reply brief." (Weil & Brown, *et al.*, Cal. Practice Guide: Civ. Proc. Before Trial (The Rutter Group 2020) §7:122.9, p. 7(I)-54; see also *Balboa Ins. Co. v. Aguirre* (1983) 149 Cal.App.3d 1002, 1010 ["[t]he salutary rule is that points raised in a reply brief for the first time will not be considered unless good cause is shown for the failure to present them before"].)

However, even if Petitioner has properly advanced the argument, the Court finds that the Board's determination is supported by the findings, based on Respondent's analysis of the relevant provisions of the Calaveras County Municipal Code, and its application of that Code to the factual findings based on the presented evidence. (See RP's Opposition at 11:3-12:9, Resp.'s Opposition at 8:26-10:10, 11:14-12:12, and portions of the administrative record cited therein; see also *City of Walnut Creek v. County of Contra Costa* (1980) 101 Cal.App.3d 1012, 1021 ["there is a strong policy reason for allowing the governmental body which passed legislation to be given a chance to interpret or clarify its intention concerning that legislation"].)

Finally, the Court feels compelled to note the discussion in Petitioner's Reply brief regarding his assertion that the Director's determination on the issues here before the Court was a consequence of a complaint that Petitioner made to the Calaveras County Sheriff. (See Reply at 2:20-3:6.) Petitioner presents this discussion as though it has some relevance to the issues before the Court. The Court is unable, however, to find any (such relevance) in the context of the allegations of the Petition and arguments asserted through Petitioner's moving papers.

Based on the foregoing, the Petition is DENIED.

The clerk shall provide notice of this ruling to the parties forthwith. Respondent is to prepare a formal Judgment pursuant to Rule of Court 3.1312 in conformity with this ruling.